

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Stephanie Dukich	Team: Squad #08	CCRB Case #: 202101805	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 03/20/2021 9:20 AM, Saturday, 03/20/2021 10:02 AM	Location of Incident: In front of 219-01 Jamaica Avenue; in front of the 105th Precinct stationhouse	18 Mo. SOL 9/20/2022	Precinct: 105		
Date/Time CV Reported Sat, 03/20/2021 11:17 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 03/20/2021 11:17 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Heather Busch	27077	948311	105 PCT
2. POF Jennifer McCormick	08951	969209	105 PCT
3. SGT Christophe Roach	03732	945296	105 PCT
4. PO Michael Russo	16409	961216	105 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Matthew Montano	06244	963658	105 PCT
2. POM Brett Allen	18907	929832	105 PCT
3. POM Brendan Mcnamara	1513	957842	105 PCT
4. SGT Michael Babiak	03391	953652	105 PCT
5. LT Clarence Hopkins	00000	930367	105 PCT
6. PO Danielle Leslie	27287	967161	105 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Heather Busch	Abuse: In front of 219-01 Jamaica Avenue, in Queens, Police Officer Heather Busch searched the vehicle in which § 87(2)(b) was an occupant.	A . Miscellaneous - Subject Retired
B . POF Jennifer McCormick	Abuse: In front of 219-01 Jamaica Avenue, in Queens, Police Officer Jennifer McCormick searched the vehicle in which § 87(2)(b) was an occupant.	B . Unfounded
C . POF Heather Busch	Abuse: In front of 219-01 Jamaica Avenue, in Queens, Police Officer Heather Busch threatened to arrest § 87(2)(b)	C . Miscellaneous - Subject Retired
D . SGT Christophe Roach	Abuse: In front of 219-01 Jamaica Avenue, in Queens, Sergeant Christopher Roach threatened to arrest § 87(2)(b)	D . Exonerated
E . PO Michael Russo	Abuse: In front of the 105th Precinct stationhouse, Police Officer Michael Russo did not process § 87(2)(b)'s complaint regarding officers.	E . Substantiated

Case Summary

On March 20, 2021, § 87(2)(b) left the following message on the CCRB's call processing system:

On March 20, 2021, at approximately 9:20 a.m., Police Officer Heather Busch and Police Officer Jennifer McCormick, of the 105th Precinct, allegedly entered § 87(2)(b)'s vehicle, which was parked in front of 219-01 Jamaica Avenue, without his consent (**Allegation A: Abuse of Authority, Miscellaneous-Subject Retired; Allegation B: Abuse of Authority, unfounded**). § 87(2)(b) requested a supervisor to the location. Sergeant Christopher Roach of the 105th Precinct arrived, at which point both PO Busch and Sgt. Roach threatened to arrest § 87(2)(b) if he did not provide his ID (**Allegation C: Abuse of Authority, Miscellaneous-Subject Retired; Allegation D: Abuse of Authority, Exonerated**).

§ 87(2)(b) went to the 105th Precinct stationhouse and told Police Officer Michael Russo of the 105th Precinct that he wanted a complaint form to file a complaint against officers. PO Russo told him that they did not take complaints at the stationhouse (**Allegation E: Abuse of Authority; substantiated**).

BWC from PO Busch, PO McCormick, Sgt. Roach, PO Allen, Police Officer Brendan Mcnamara, and Police Officer Matthew Montano, all from the 105th Precinct, was obtained by the investigation (Board Review 01).

Findings and Recommendations

Allegation (A) Abuse of Authority: In front of 219-01 Jamaica Avenue, in Queens, Police Officer Heather Busch searched the vehicle in which § 87(2)(b) was an occupant.
Allegation (B) Abuse of Authority: In front of 219-01 Jamaica Avenue, in Queens, Police Officer Jennifer McCormick searched the vehicle in which § 87(2)(b) was an occupant.
Allegation (C) Abuse of Authority: In front of 219-01 Jamaica Avenue, in Queens, Police Officer Heather Busch threatened to arrest § 87(2)(b)
Allegation (D) Abuse of Authority: In front of 219-01 Jamaica Avenue, in Queens, Sergeant Christopher Roach threatened to arrest § 87(2)(b)

In his CCRB interview on March 26, 2021, § 87(2)(b) stated that at approximately 9:20 a.m. on March 20, 2021, he drove to the Chase Bank located at 219-01 Jamaica Avenue in Queens. § 87(2)(b) was driving a Grey 2016 Lexus GX-460 with New York State license plate § 87(2)(b). The front windows of § 87(2)(b)'s vehicle do not have any tints. The vehicle did not smell of marijuana and there was no contraband inside of it. § 87(2)(b) was not accompanied by anybody. § 87(2)(b) legally parked his vehicle directly outside of the bank next to the sidewalk on Jamaica Avenue.

Upon arriving, § 87(2)(b) saw PO Busch and PO McCormick walking toward the corner store. § 87(2)(b) parked his car, left the engine running, and entered the bank to withdraw cash from the ATM. Less than a minute later, while starting the transaction, § 87(2)(b) looked outside of the bank and saw PO Busch inside of his vehicle looking in the center console, while PO McCormick was inside of the vehicle looking underneath the passenger seat. PO Busch turned § 87(2)(b)'s engine off and lowered the vehicle's windows. The officers never asked § 87(2)(b) to enter the vehicle.

§ 87(2)(b) ran outside of the bank and asked PO Busch and PO McCormick the reason why they were inside of his vehicle. In response, PO Busch asked § 87(2)(b) for his ID. § 87(2)(b) refused to provide his ID. He got into his vehicle, shut the windows, turned the engine off, and went back

inside of the bank because he left his card in the ATM. PO Busch and PO McCormick followed § 87(2)(b) inside of the bank and requested his ID again. § 87(2)(b) refused and requested a supervisor to the location.

Minutes later, Sgt. Roach, PO Allen, PO McNamara, and PO Montano arrived. Sgt. Roach told § 87(2)(b) that he needed to give the officers his driver's license, or else he would go to jail. § 87(2)(b) asked the officers what he had done wrong, and Sgt. Roach informed him that he had left his vehicle idling. § 87(2)(b) refused to provide his driver's license again, at which point Sgt. Roach threatened to arrest § 87(2)(b) several more times.

§ 87(2)(b) provided his ID to Sgt. Roach. § 87(2)(b) was carrying a grey pocketknife with a 2 ½" blade that was affixed to the inside of his pants pocket by a clip. Sgt. Roach took the knife off § 87(2)(b)'s pocket by its chain without reaching inside. Officers gave § 87(2)(b) two summonses, for leaving his engine running and for possession of a pocket-knife (Board Review 03). Sgt. Roach then told § 87(2)(b) that he was free to leave, and § 87(2)(b) left the location (Board Review 02).

PO McCormick and Sgt. Roach were not interviewed because BWC captured the entire incident.

In PO Busch's BWC from the incident, the video begins as PO Busch and PO McCormick walk out of a store and toward § 87(2)(b)'s vehicle, which is parked in front of Chase Bank. At 0:30, PO Busch opens the front passenger's side door and leans in so that her head is inside of the vehicle. PO McCormick stands to her left, outside of the vehicle. At 0:46, PO Busch turns around toward that front of the bank. § 87(2)(b) stands at the front door and gesticulates. PO Busch asks for § 87(2)(b)'s ID because he left his vehicle running in the street. § 87(2)(b) refuses, yells at the officers, walks from the bank to the vehicle, and sits in the driver's seat. He starts the car then goes back into the ATM area of the bank. PO Busch and PO McCormick follow him in. The officers continue to request his ID and § 87(2)(b) continues to refuse. At 5:35, PO Busch tells § 87(2)(b) that she opened his door because she wanted to see if anyone was in the vehicle, but the windows were tinted.

§ 87(2)(b) continues to refuse to provide his license. At 5:20, PO Busch asks, "Sir, are you prepared to be arrested?" § 87(2)(b) asks, "For what crime?" PO Busch responds, "Refusing to give me your ID." Sgt. Roach, PO Allen, PO McNamara, and PO Montano arrive at 7:45. § 87(2)(b) explains his side of the story to Sgt. Roach. At 11:20, Sgt. Roach reaches down to § 87(2)(b)'s right hip pocket, takes a knife off it, and hands it to another officer. At 11:40, Sgt. Roach tells § 87(2)(b) that if does not provide the officers with his ID, he will take him back to the stationhouse in handcuffs. At 13:02, § 87(2)(b) takes his wallet out and gives his license to PO McCormick. PO Busch writes a summons for § 87(2)(b). She exits the bank and records § 87(2)(b)'s license plate number. PO Busch finishes writing the summons, walks back into the bank, and gives the summons to § 87(2)(b). PO Busch explains to § 87(2)(b) that the officers will not give his knife back and gives him a summons for § 87(2)(b). PO Busch and PO McCormick tell § 87(2)(b) that he is free to leave. § 87(2)(b) and the officers leave the bank. Sgt. Roach and § 87(2)(b) have a calmer conversation about the incident and about § 87(2)(b)'s feelings in front of the bank. At 38:05, when speaking with another officer, PO Busch mentions that she turned § 87(2)(b)'s car off by pressing the on-off button inside (Board Review 01).

According to Patrol Guide Procedure 209-09, when issuing a summons returnable to the Traffic Violations Bureau or Criminal Court, a uniformed member of service must inform violator of the offense committed and request that violator show proof of identity and residence. In traffic cases, examine driver's license, vehicle registration, and insurance identification card for vehicles registered in New York State (Board Review 04).

DAO confirmed that PO Busch retired before she could be interviewed by the investigation. Therefore, it is recommended that **Allegations A and C** be closed as **Miscellaneous- Subject Retired**.

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **unfounded**.

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as **exonerated**.

Allegation (E) Abuse of Authority: In front of the 105th Precinct stationhouse, Police Officer Michael Russo did not process § 87(2)(b)'s complaint regarding officers.

§ 87(2)(b) stated that after his interaction with PO Busch, PO McCormick, and Sgt. Roach, he went to the 105th Precinct stationhouse to file a complaint. § 87(2)(b) told PO Russo, who stood outside the building, that he wanted a complaint form to file a complaint against two officers. PO Russo told him that they did not take complaints at the stationhouse. He said that instead, § 87(2)(b) would need to call a phone number to file the complaint. He tried to show § 87(2)(b) the phone number that was posted on a board inside of the stationhouse, but an officer was posting a message on it, and § 87(2)(b) could not see the phone number. PO Russo wrote the number down for § 87(2)(b). He did not offer to file the complaint at the stationhouse.

§ 87(2)(b) walked back to his car and spoke to his attorney, who told him that the police department still provided complaint forms. § 87(2)(b) walked back to the stationhouse and told PO Russo what his attorney had just said. An unidentified officer came outside the stationhouse and spoke to § 87(2)(b). He provided § 87(2)(b) with a copy of the complaint form.

Ultimately, § 87(2)(b) did not use the complaint forms to file this complaint. He used the 1-800 number that connected him with the CCRB (Board Review 02).

PO Russo testified to the CCRB on November 8, 2021, that on March 20, 2021, he was working stationhouse security. § 87(2)(b) approached him as he stood outside the stationhouse and told him that he wanted to make a report against two officers. PO Russo does not recall what, if anything, he learned about the nature of the complaint. PO Russo gave him the phone number for the CCRB by directing him into the vestibule area, where a poster with the CCRB phone number printed on it hung and told § 87(2)(b) that he could take down and call that number. Aside from the phone number, PO Russo did not provide any other information to § 87(2)(b). PO Russo could not recall whether § 87(2)(b) took the number down, or whether PO Russo wrote the number down for § 87(2)(b). § 87(2)(b) seemed satisfied with the information provided to him and left the stationhouse without asking PO Russo to file a complaint in person at any point. PO Russo denied ever telling § 87(2)(b) that he could not file a complaint for him at the stationhouse at any point. There was no reason that he could not take § 87(2)(b)'s complaint at the stationhouse. He did not take § 87(2)(b)'s complaint in person because § 87(2)(b) left after he received the CCRB's phone number.

Within five minutes, § 87(2)(b) returned to the stationhouse and stated that he wanted to file the same complaint in-person, at the stationhouse. PO Russo told § 87(2)(b) that he would get his supervisor, went inside of the stationhouse, and came back outside with Sergeant Michael Babiak

of the 105th Precinct. Sgt. Babiak spoke with § 87(2)(b) while PO Russo went inside of the vestibule area of the stationhouse. PO Russo believed that Sgt. Babiak filed a complaint for § 87(2)(b) in-person, though he did not independently witness this happening.

When asked about the procedure to file a civilian complaint against officers at the stationhouse, PO Russo stated that he was required to provide the information for the CCRB, which he did by directing § 87(2)(b) to the posting with the CCRB's phone number. He did not know whether he was required to file a complaint for § 87(2)(b) at that stationhouse (Board Review 05).

According to NYPD Patrol Guide Procedure 207-31, when a civilian wants to file a complaint at a stationhouse against an officer, an officer should interview the civilian, provide a civilian complaint report, and provide assistance if needed to complete the form. If an individual does not want to immediately make a complaint, they should be provided with the first copy of the civilian complaint report and be advised that the complaint may be delivered in person, taken over the phone, or sent by mail to any precinct or office of the Police Department. In addition, the civilian is to be provided with the number of the Civilian Complaint Review Board (Board Review 06).

§ 87(2)(g)

it is recommended that **Allegation E** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- PO McCormick has been a member-of-service for one year and this is the first CCRB complaint to which she has been a subject.
- Sgt. Roach has been a member of service for fourteen years and has been a subject in three other CCRB complaints and four allegations, none of which were substantiated.
- PO Russo has been a member of service for five years and has been a subject in three other CCRB complaints and eight other allegations, of which one was substantiated:
 - 201904639 involved substantiated allegations of discourtesy against PO Russo. The Board recommended instructions and the NYPD imposed instructions.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of November 5, 2021, a Notice of Claim FOIL request was filed with the New York City Office of the Comptroller (Board Review 07). The results are pending.
- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 8

Investigator:	<u>Stephanie Dukich</u>	<u>Inv. Stephanie Dukich</u>	<u>May 26, 2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Ethan De Angelo</u>	<u>IM Ethan De Angelo</u>	<u>May 26, 2022</u>
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Signature

Print Title & Name

Date

Reviewer:

Signature

Print Title & Name

Date